

Court No. - 21

Case :- WRIT - C No. - 2592 of 2018

Petitioner :- M/S Pal News Media Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sujeet Kumar, Chhaya Gupta

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Krishna Murari, J.

Hon'ble Ajay Bhanot, J.

We have heard Sri Sujeet Kumar, learned counsel for the petitioner, learned Standing Counsel for the respondent No.1 and Sri Chandan Agarwal, learned counsel for the respondents No.2, 3 and 4.

With the consent of the learned counsel for the parties, the writ petition is being finally disposed of at the admission itself without calling any counter affidavit.

Facts of the case in brief are as under:

Petitioner entered into the lease agreement with landlord-respondent No.5 of the premise No.B-175, Sector-44, Noida, District-Gautam Budh Nagar on 19.1.2017. subsequently, respondent No.5 filed a suit for eviction, which is still pending in the court of Civil Judge (Senior Division), Gautam Budh Nagar. Landlord-respondent No.5 after filing suit made an application before the respondent Nos.3 and 4 seeking permanent disconnection of the electricity connection. On his application, the connection was permanently disconnected on 26.12.2017. Thereafter, petitioner made an application dated 2.1.2018 for transfer of the connection in his name whereupon he was told that without consent of the landlord, connection cannot be transferred. Thereafter, petitioner again

made an application dated 9.1.2018 for fresh electricity connection in the premises in dispute.

Grievance of the petitioner is that for want of consent from the landlord, even fresh connection is not being sanctioned.

The issue was subject matter for interpretation before a Division Bench of this Court in the case of ***Seema Mansoor Vs. U.P. Power Corporation Ltd., Lucknow and others***, reported in **2014(6) ADJ 672**. The Division Bench after considering the provisions of Clause-4.4 of the U.P. Electricity Code, 2005 as well as provisions of the Electricity Act, 2003 held as under:

"15. A perusal of Annexure 4.2 reproduce herein-above goes to show that the purpose as is obvious from the reading of the aforesaid form is to indemnify the licensee for any loss that may accrue on account of any act of a person in occupation of the building though he may not be owner. Thus, the Code 2005 provides either for consent letter of owner of the premises or in the absence thereof indemnity bond by the lessee/tenant or occupier of the premises. Intention is, thus, clear that either there should be owner's consent to indemnify the licensees in case the tenant/lessee or occupier vacates and vanishes without leaving his address or in the alternative tenant/lessee or occupier may give an undertaking indemnifying any loss or damage to licensee on account of electricity connection being given to him without the consent of the owner of the land or premises making it recoverable from him and his property under the provisions of the Revenue Act in force at the time of such recovery, or by such other proceedings as the Licensee may deem fit to initiate.

16. From the reading of the aforesaid provisions, it is clear that licensee is under an obligation to supply electrical energy on a proper application being made and every owner or occupier, which will include a tenant, of the premises has statutory right to apply and obtain electricity supply from the licensee subject to his fulfilling requirements under the provisions of the Electricity Act, 2003 and the Electricity Supply Code 2005. Thus, an application for grant of electricity connection cannot be refused by licensee on the ground that there is no consent of the landlord. From the scheme of the Act and the duties cast upon the licensee and right conferred upon the person making application for supply of electrical energy in case he submits indemnity bond, a lessee/tenant or occupier cannot be refused electricity connection merely for want of consent of the landlord.

19. In view of the aforesaid facts and discussions, the petitioner being occupier of the premises in question as a tenant has a legal right to obtain electricity connection and the respondents licensee was under an obligation to give connection for supply of electrical energy and the same

could not have been refused solely for want of consent of the owner/landlord of the premises."

Sri Chandan Agrawal, learned counsel for the respondents No.2, 3 and 4 fairly states that since petitioner has made an application for fresh connection, the same shall be processed expeditiously in the light of law laid down in the case of **Seema Mansoor (supra)**.

In view of the above, we dispose of the writ petition by directing respondents No.2, 3 and 4 to consider the application made by the petitioner for grant of fresh electricity connection in accordance with law and to process the same expeditiously in the light of the law laid down in the case of **Seema Mansoor (supra)** within a period of 10 days from the date of production of a certified copy of this order before it.

Order Date :- 23.1.2018

Ashish Tripathi

Court No. - 21

(Review/Recall Application No. 2 of 2018)

In

Case :- WRIT - C No. - 2592 of 2018

Petitioner :- M/S Pal News Media Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sujeet Kumar, Chhaya Gupta

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Krishna Murari, J.

Hon'ble Ajay Bhanot, J.

Case called out. No one appears on behalf of the review applicant to press the application.

The review application, accordingly, stands dismissed for want of prosecution.

Order Date :- 18.5.2018

VKS